

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v.

COMPLAINTUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL Health

DEFENDANTS

SERVE: James Rayome
530 South Jackson Street
Louisville, KY 40202

and

UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.

SERVE: VCT Services Louisville, LLC
2303 River Road, Suite 301,
Louisville, KY 40206

and

ERICA GETTIS, D.O.

SERVE: Erica Gettis
2401 Terra Crossing Blvd.,
Louisville, KY 40245

and

ROBERT ARIA, M.D.

SERVE: Robert Aria, M.D.
1850 Bluegrass Ave.
Louisville, KY 40215

Come the Plaintiffs, Charles Tinker, Individually and as Executor of the Estate of Thelma Tinker, Deceased, and Denise Houck, Monica Russell, Brian Tinker, and Cheri Kalilikani by counsel, and for their Complaint against the above-named Defendants, state as follows:

PARTIES AND JURISDICTION

1. Plaintiff, Charles Tinker (“Charles”), was and is a resident of Louisville, Jefferson County, Kentucky.
2. Thelma “Timmi” Tinker (“Timmi”) passed away on May 17, 2024. At the time of her death, Timmi was a resident of Louisville, Jefferson County, Kentucky.
3. At all times pertinent hereto, including at the time of Timmi’s death, Charles and Timmi were married.
4. Plaintiff, Denise Houck (“Denise”), was and is a resident of La Grange, Oldham County, Kentucky. Denise is the adult daughter of Charles and Timmi.
5. Plaintiff, Monica Russell (“Monica”), was and is a resident of Prospect, Jefferson County, Kentucky. Monica is the adult daughter of Charles and Timmi.
6. Plaintiff, Brian Tinker (“Brian”), was and is a resident of Torrance, Los Angeles County, California. Brian is the adult son of Charles and Timmi.
7. Plaintiff, Cheri Kalikanni (“Cheri”), was and is a resident of Gardner, Johnson County, Kansas. Chari is the adult daughter of Charles and Timmi.
8. On July 18, 2024, the Jefferson County District Court appointed Charles Executor of Timmi’s Estate. The Jefferson County District Court’s Order

appointing Charles as the Executor of Timmi's Estate is attached as Exhibit A hereto and incorporated by reference herein.

9. Defendant, UofL Health-Louisville, Inc, d/b/a UofL Health (hereinafter referred to as UofL) is, and at all times pertinent hereto was, a Kentucky corporation authorized to do business in Kentucky, and in fact doing business in Jefferson County, Kentucky. At all times pertinent hereto, UofL held itself out as capable of providing medical, diagnostic, and radiologic care and services to persons such as Timmi. At all times pertinent hereto, UofL, through its employees, servants, agents, and ostensible agents, provided medical, diagnostic, and radiologic care and services to Timmi in Jefferson County, Kentucky.

10. Defendant, University of Louisville Physicians, Inc. (hereinafter referred to as ULP) is, and at all times pertinent hereto was, a Kentucky corporation authorized to do business in Kentucky, and in fact doing business in Jefferson County, Kentucky. At all times pertinent hereto, ULP held itself out as capable of providing medical, diagnostic, and radiologic care and services to persons such as Timmi. At all times pertinent hereto, ULP, through its employees, servants, agents, and ostensible agents, provided medical, diagnostic, and radiologic care and services to Timmi in Jefferson County, Kentucky.

11. Defendant, Erica Gettis, D.O., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through her employees and agents, both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL and ULP, Erica Gettis provided medical, diagnostic, and radiologic

care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

12. Based on information and belief, Defendant Gettis is, and at all times pertinent hereto was, an employee of Defendants, UofL and ULP.

13. Defendant, Robert Aria, M.D., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through his employees and agents, both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL and ULP, Robert Aria provided medical, diagnostic, and radiologic care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

14. Based on information and belief, Defendant Aria acted as the agent and servant, and/or ostensible agent, of Defendants, UofL and ULP.

15. UofL and ULP are vicariously liable for the actions and omissions of its employees, servants, agents, and/or ostensible agents, including the named Defendants and any others not expressly named herein.

16. At all times relevant, each of the Defendants and all the Defendants acted as authorized, actual, implied, and/or apparent agents, servants, and/or employees of each other.

17. All Defendants are jointly and severally liable for the injuries and damages alleged in this Complaint.

18. All amounts claimed herein are in excess of the minimal jurisdiction limits of this Court. Venue is proper in Jefferson Circuit Court pursuant to KRS

452.450 and KRS 452.460, since the events or omissions giving rise to this action occurred in Jefferson County, Kentucky.

19. In accordance with KRS 411.167, attached is the affidavit and certificate of merit of undersigned counsel for Plaintiffs, which is incorporated herein.

FACTS APPLICABLE TO ALL COUNTS

20. Prior to August 15, 2022, Timmie entered into a physician-patient relationship with Defendant Gettis.

21. Prior to August 15, 2022, Defendant Gettis ordered a positron emission tomography (PET) scan of Timmi's chest to evaluate Timmi's lungs.

22. On or around August 15, 2022, Timmi underwent a PET scan at the direction of Defendant Gettis.

23. The PET scan was interpreted by Defendant Aria.

24. The PET scan of Timmi's chest on or about August 15, 2022, contained findings that were highly suspicious of lung cancer and, in fact, revealed that Timmi had lung cancer at the time.

25. Defendants Gettis, Aria, UofL, and ULP failed to inform Timmi that the PET scan of her chest on or about August 15, 2022 contained findings that were highly suspicious of lung cancer and, in fact, revealed that Timmi had lung cancer at the time.

26. Defendants Gettis, Aria, UofL, and ULP failed to treat Timmi for the lung cancer that was revealed from the PET scan of her chest on or about August

15, 2022, and failed to recommend any treatment or treatment options for this cancer to Timmi.

27. Defendants Gettis, Aria, UofL, and ULP failed to promulgate, apply, train, and enforce proper policies, procedures, rules, regulations, and/or standards with respect to the medical, radiologic, and diagnostic care and services provided to Timmi.

28. Timmi had a measurable chance of recovery from cancer had her condition been diagnosed timely on or around August 15, 2022.

29. In their care and treatment of Timmi, Defendant Gettis, Aria, UofL, and ULP acted negligently and failed to exercise the degree of care and skill of a reasonable and prudent physician, radiologist, medical center, hospital, and physician group under the same or similar circumstances.

30. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein, Charles and Timmi did not learn that Timmi had cancer or that there were findings in the PET scan of her chest on or about August 15, 2022, that were highly suspicious of cancer until on or around May 9, 2024, when Timmi was taken to Norton Women and Children's Hospital for shortness of breath and fatigue.

31. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein, Timmi did not receive any treatment for the cancer that was present on or about August 15,

2022, and revealed in the PET scan of her chest from that date until after she presented to Norton Women and Children's around 633 days later on May 9, 2024.

32. Timmi suffered personal injuries, which caused her death, as a result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein.

33. As a direct and proximate result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, and ULP, as alleged herein, Charles has suffered, and will continue to suffer in the future, the loss of her services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his wife, Timmi.

34. As a result of her death, Timmi's estate suffered a destruction of power to labor and earn money and to perform household services and incurred funeral and burial expenses.

35. Plaintiff, Charles Tinker, has suffered the loss of services, assistance, aid, society, love, companionship, affection, and conjugal relations of his wife, Timmi Tinker.

36. Plaintiff, Denise Houck, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

37. Plaintiff, Monica Russell, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

38. Plaintiff, Brian Tinker, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of his beloved mother, Timmi Tinker.

39. Plaintiff, Cheri Kalilikani, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

40. The individual and collective negligence and gross negligence of all Defendants, directly and/or by and through their owners, members, employees, servants, agents, and/or ostensible agents as set forth, were together and individually substantial factors in causing the injuries and damages to Timmi and to Plaintiffs as set forth in this Complaint.

COUNT I – NEGLIGENCE AND GROSS NEGLIGENCE
CLAIMS AGAINST ALL DEFENDANTS

41. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

42. Defendants were each severally and jointly negligent, reckless and grossly negligent, and breached their duty of care to Timmi as alleged in this Complaint, which breach(es) of duty were together and individually a substantial factor in causing Timmi's injuries and death, leading directly and proximately to the damages alleged.

43. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT II – WRONGFUL DEATH CLAIMS
AGAINST ALL DEFENDANTS

44. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

45. As a result of acts and omissions described in this Complaint, all Defendants are jointly and severally liable to the Estate of Timmi Tinker for the destruction of her power to labor and earn money and to perform household services, and for her medical, burial and funeral expenses.

46. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT III – LOSS OF SPOUSAL CONSORTIUM CLAIM
AGAINST ALL DEFENDANTS

47. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

48. As a result of acts and omissions described in this Complaint, all Defendants are jointly and severally liable to Plaintiff, Charles Tinker, Individually, for his loss of services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Timmi Tinker.

49. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT IV – LOSS OF PARENTAL CONSORTIUM CLAIM
AGAINST ALL DEFENDANTS

50. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

51. As a result of the acts and omissions described in this Complaint, all Defendants are jointly and severally liable to Plaintiff, Denise Houck, to Plaintiff, Monica Russell, to Plaintiff Brian Tinker, and to Plaintiff, Cheri Kalilikani, for her and his loss of services, assistance, aid, society, love, companionship, and affection, of their beloved mother, Timmi Tinker.

52. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT V – PUNITIVE DAMAGES CLAIMS
AGAINST ALL DEFENDANTS

53. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

54. Defendants, Gettis, Aria, UofL, and ULP, are liable to Plaintiff, Charles Tinker, Individually and as Executor of the Estate of Timmi Tinker, Deceased, for punitive damages as a result of their individual and joint willful and wanton conduct and gross negligence, including, but not limited to, the actions and omissions set forth herein, all of which evidence oppression, malice, and reckless disregard for the safety of persons such as Timmi Tinker.

55. Defendants, UofL and ULP, are liable for punitive damages attributable to their direct liability as well as their liability based on the acts and omissions of their respective employees, servants, agents, and/or ostensible agents.

56. The heightened standard of proof for punitive damages as required by KRS 411.184(2) is unconstitutional and should be determined to be null and void.

57. The restrictions on recovery of punitive damages against a principal or employee for the conduct of an employee, servant, agent, and/or ostensible agent as set forth in KRS 411.184(3A) are unconstitutional and should be determined to be null and void.

58. In the alternative, each Defendant authorized, ratified, and/or should have anticipated the acts and omissions of their respective employees, servants, agents, and/or ostensible agents as set forth in this Complaint.

WHEREFORE, Plaintiffs respectfully request as follows:

- a. Judgment be rendered against Defendants, UofL Health-Louisville, Inc., d/b/a UofL Health; University of Louisville Physicians, Inc.; Erica Gettis, D.O.; and Robert Aria, M.D., in an amount which will fairly and reasonably compensate Charles Tinker, Denise Houck, Monica Russell, Brian Tinker, Cheri Kalilikani, and/or the Estate of Thelma “Timmi” Tinker, as the case maybe, for:
 - 1) Thelma “Timmi” Tinker’s physical, emotional, and mental pain and suffering, fear and apprehension of impending death, emotional distress, and mental anguish prior to his death;
 - 2) Thelma “Timmi” Tinker’s loss of enjoyment of life and loss of her life expectancy;
 - 3) The destruction of Thelma “Timmi” Tinker’s power to labor and earn money and to perform household services.
 - 4) The medical, funeral and burial costs and expenses;
 - 5) Charles Tinker’s loss of services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Thelma “Timmi” Tinker;
 - 6) Denise Houck’s loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma “Timmi” Tinker;
 - 7) Monica Russell’s loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma “Timmi” Tinker;

- 8) Brian Tinker's loss of services, assistance, aid, society, love, companionship, and affection, of his beloved mother, Thelma "Timmi" Tinker;
- 9) Cheri Kalilikani's loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma "Timmi" Tinker; and

10) Punitive Damages.

- b. Plaintiffs' costs expended, including a reasonable attorneys fee;
- c. Pre-judgment interest from May 17, 2024, until the date of any judgments rendered are fully paid, all at the statutory rate and compounded annually;
- d. Post-judgment interest from the date of any judgments rendered until fully paid, all at the statutory rate and compounded annually;
- e. Trial by jury on all issues triable;
- f. Leave to amend their pleadings as necessary; and
- g. Any and all other relief to which Plaintiffs may appear entitled.

CERTIFICATION

The undersigned attorneys certify, pursuant to KRS 411.188(2), they have notified by certified mail all parties believed to possibly hold subrogation rights to any award received by Plaintiff as a result of this action and that the failure to assert subrogation rights by intervention, pursuant to CR 24 or otherwise, will result in a loss of those rights with respect to any final award received by Plaintiff as a result of this action. The party notified is as follows: Medicare, P.O. Box 138832, Oklahoma City, OK 73113.

* * * * *

Respectfully submitted,

/s/ Ann B. Oldfather

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
1330 South Third Street
Louisville, KY 40208
(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiffs

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, in accordance with KRS 418.075 and CR 24.03, a true and correct PDF copy hereof was served, via email to ServetheCommonwealth@ky.gov:

Hon. Russell Coleman
Office of the Attorney General
700 Capitol Avenue, Suite 118
Frankfort, Kentucky 40601
ServetheCommonwealth@ky.gov

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFF

v.

CERTIFICATE OF MERITUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL Health, et al.

DEFENDANTS

After having been duly sworn, the undersigned attorney and Affiant, Sheldon L. Haden, states that Plaintiffs, Charles Tinker, Individually and as Executor of the Estate of Thelma Tinker, Denise Houck, Monica Russell, Brian Tinker, and Cheri Kalilikani, by and through the undersigned attorney, have reviewed the facts of this case and have consulted with an expert qualified pursuant to the Kentucky Rules of Civil Procedure and the Kentucky Rules of Evidence to give testimony as to the standard of care and negligence, and who undersigned Claimant's counsel reasonably believes is knowledgeable in the relevant issues involved in this particular action, and has concluded on the basis of review and consultation that there is a reasonable basis to commence this action.

Further Affiant sayeth naught.


Sheldon L. Haden, Affiant

COMMONWEALTH OF KENTUCKY)
) SS:
COUNTY OF JEFFERSON)

SUBSCRIBED AND SWORN to before me by Sheldon L. Haden on April 15,
2025.

Suzanna Weiss
Notary Public, State-at-Large, Kentucky
My Commission Number: KYNP91345
My Commission Expires: 8/15/2028



92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000015 of 000084

Presiding Judge: HON. JULIE KAE LIN (630451)

CMER : 000002 of 000002

EXHIBIT A

AOC-805.1 Rev. 12-23 Page 1 of 1 Commonwealth of Kentucky Court of Justice www.kycourts.gov KRS 394.145; 395.015; 395.016	 ORDER PROBATING WILL; AND/OR APPOINTING EXECUTOR/ADMINISTRATOR	Case No. <u>24-P-00</u> Court _____ County <u>Jefferson</u> Division _____
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IN RE: Estate of Thelma Marie Tinker

☐ Petition filed this _____ day of _____, 2_____.

☐ Will tendered this _____ day of _____, 2_____.

Upon hearing, the Will offered was proven by Summary Memorandum and California Probate Code Section 8220 (b) and **ORDERED**
PROBATED as the Last Will and Testament of Decedent this 17 day of JULY 2024.

The Court appoints: Charles Raymond Tinker as ☒ Executor/Executrix OR

☐ Administrator/Administratrix of said estate and fixes bond in the sum of \$ 300,000 ☐ with surety OR

x without surety.

(Check if Executor/Executrix or Administrator/Administratrix is a nonresident)

☐ The Court designates _____, whose address is _____
_____, as agent for the service of process in any action filed against
the above-appointed Executor/Executrix or Administrator/Administratrix as personal representative or personally if the
action accrued in the administration of the estate.

_____ JULY 18, 2024 _____
Date


Yvette De La Guardia
/s/ HON. YVETTE DE LA GUARDIA
electronically signed
7/18/2024 4:58:27 PM ET

Judge's Signature

Distribution: Case File
Revenue Cabinet (Petition and Order)

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*

CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v. **PLAINTIFF'S FIRST SET OF INTERROGATORIES AND
REQUEST FOR PRODUCTION OF DOCUMENTS
TO DEFENDANT, ROBERT ARIA, M.D.**

UofL HEALTH-LOUISVILLE, INC ET AL. DEFENDANTS

* * * * *

Plaintiffs, by counsel, pursuant to CR 33 and 34, propound to Defendant, Robert Aria, M.D., the first set of Interrogatories and Request for Production of Documents. Unless a shorter time for compliance is ordered by the Court, your answers to these requests are due within forty-five (45) days of the date of service hereof.

INSTRUCTIONS

These Discovery Requests shall be deemed continuing and supplemental answers and production shall be required of you pursuant to CR 26.05 if you or your counsel directly or indirectly obtain further information of the nature sought herein after the time the answers are served and the documents are produced. In complying, you should produce each document in its original form together with any

non-identical copies of the document on which any mark, alteration or additional writing or change from the original, or from another copy, has been made or affixed. All documents should be produced in their original folders, binders, or boxes, in the same order in which they are kept in the ordinary course of business and shall include labels to show their source (e.g., “from Mr. Smith’s desk”). Copies may be produced in lieu of the originals *if* complete copies are provided, including without limitation inside and outside covers, dividers, tabs and the like, *and* if the originals are simultaneously available for inspection. Accordingly, each request herein for a document covers the original, each non-identical copy, as well as the folders, etc. in which the documents were kept.

Withheld or Redacted Material

In the event any document is withheld in whole or in part, please provide a privilege log, which must specify at a minimum the date of the document, the author(s), all recipient(s), the type of document (letter, memo, e-mail, etc.), a sufficient summary description of the contents of the document to allow your claim of privilege to be determined, the claim of privilege or protection upon which it is withheld, and your complete factual basis for that claim.

In the event any document is redacted, altered, or modified, in whole or in part, please ensure that the fact of redaction is plainly stated at the place where it is made, and please provide a privilege log as described above with respect to the redacted material.

The failure to provide the privilege log, or to plainly reflect any redaction, will be claimed as a waiver of any assertion of any claimed privilege or protection from discovery, or as an intentional failure to make discovery.

Objections

If you object to any Interrogatory or Request for Production of Documents, please state the following or words of the same import: “Notwithstanding the objection, all responsive information and materials, as the case may be, are nevertheless produced.” Failing such confirmation, we will assume that responsive materials known to party(ies) or counsel have been withheld from production or from the response to Interrogatory, as the case may be and we will proceed accordingly.

DEFINITIONS

All the non-defined words used in these interrogatories and requests for production are intended as defined by standard American usage, which is as specified in a standard dictionary of the English language. Moreover, each word or term used in these written discovery requests is meant to have the broadest possible meaning permitted by the Kentucky Rules of Civil Procedure.

As used in these interrogatories and requests for production, the following specifically identified words are intended to be defined as follows:

“You” or “your” means Defendant, Robert Aria M.D., and any of their employees, agents, subsidiaries, and/or any persons connected with, acting, or purporting to act on behalf of him.

“Person” or “persons” means and includes any natural person, corporation, partnership, joint venture, proprietorship, association, governmental or public entity, or any other form of organization or legal entity, and all their officials, officers, employees, representatives, and agents.

“Document” has the comprehensive meaning set out in CR 34 and includes all written, typed, printed, recorded or graphic statements, communications, or other matter, however produced or reproduced, and whether or not now in existence, in Your possession, custody, or control, including without limitation all electronically stored information.

As used in these written discovery requests, the singular of each word shall be construed to include its plural and vice versa; “and” and “or” shall be construed both conjunctively and disjunctively; “each” shall be construed to include “every” and vice versa; “any” shall be construed to include “all” and vice versa; and the present tense shall be construed to include the past tense and vice versa.

As used in these written discovery requests, the word “pertaining” means referring to, alluding to, responding to, connected with, commenting on, touching upon, consisting of, with respect to, about, constituent, containing, embodying, supporting, evidencing, regarding, discussing, identifying, recording, showing, describing, reflecting, relating to, or mentioning, the matter identified.

When asked to “describe” or “identify,” state at least the following:

- (a) The full name, home address, business address, employer, position and contact phone number and email address with respect to a natural

person;

- (b) The full name, principal business address, phone number and email contact with respect to a corporation, partnership, or other business or government entity;
- (c) The speaker, each person who heard the communication, the substance of the communication and the time and place of the communication with respect to an oral communication;
- (d) The document's title and a description of its subject matter, the identity of the person or persons who prepared it, the identity of the recipients, its date, and if undated, its date of preparation, and its location and custodian, with respect to a written communication; and
- (e) The date(s) and time(s) at which an event occurred, the location at which it occurred and any witnesses to it or persons present at it, with respect to an event or occasion.

* * * * *

INTERROGATORIES

INTERROGATORY NO. 1. Identify any person aiding, or in any other way contributing to, the preparation of the response to these Interrogatories and Request for Production of Documents.

ANSWER:

INTERROGATORY NO. 2. Identify your employer in August 2022.

ANSWER:

INTERROGATORY NO. 3. If you maintain that Plaintiffs' injuries as described in the Complaint are attributable to the fault of any person other than you, whether in whole or in part, please identify each person to whom you attribute

such fault and state specifically the facts upon which you rely in support of your position.

ANSWER:

INTERROGATORY NO. 4. Identify each person known to you (including, but not limited to, your attorney) to be a witness to any of the events involved in this lawsuit, including without limitation all people who have knowledge of the facts or events of Timmi Tinker's care and treatment. For each person so identified, provide a summary of your understanding of the subject matter of that person's knowledge or claimed knowledge.

ANSWER:

INTERROGATORY NO. 5. Please state what you contend to be the amount of available liability insurance which may be applicable to *each* of the claims stated in the Complaint.

ANSWER:

INTERROGATORY NO. 6. Has any insurer notified you of any reservation of rights or other defenses as to coverage with respect to any policy which may be applicable to the claims stated in the Complaint?

ANSWER:

INTERROGATORY NO. 7. If the answer to the preceding Interrogatory is in the affirmative, please state the date upon which any such reservation(s) or defense(s) were communicated to you, describe all of the reasons offered by such insurer for such reservation or defense, and please produce all documents pertaining thereto.

ANSWER:

INTERROGATORY NO. 8. Identify each person whom you intend to call as an expert witness at any hearing or at trial and, for each such expert, please state the following:

- a) The subject matter on which the expert is expected to testify;
- b) The substance of the facts and opinions to which the expert is expected to testify; and
- c) A summary of the grounds for each opinion of the expert.

ANSWER:

INTERROGATORY NO. 9. State what you contend to be the legal relationship(s) between you and the other Defendants from August 2022 to May 2024, and what you contend it to be currently.

ANSWER:

INTERROGATORY NO. 10. Were any incident reports or similar reports made by you about Timmi's death? If so, please identify each report, any person who

reviews the report(s), and the person having custody of each report.

ANSWER:

INTERROGATORY NO. 11. Identify every meeting held by you or in which you participated where Timmi's care was discussed and identify who was present for such meeting.

ANSWER:

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Presiding Judge: HON. JULIE KAELIN (630451)

IRPD : 000008 of 000015

VERIFICATION

I, Robert Aria, M.D., hereby verify the Answers contained herein are true and accurate to the best of my knowledge and belief.

Robert Aria, M.D.

COMMONWEALTH OF KENTUCKY)
) ss:
COUNTY OF _____)

SUBSCRIBED AND SWORN to before me by Robert Aria, M.D., on this ____ day of _____, 2025.

Notary Public, State-at-Large
My Commission Expires: _____
My Commission Number: _____

992916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000026 of 000084

Presiding Judge: HON. JULIE KAE LIN (630451)

IRPD : 000009 of 000015

REQUEST FOR PRODUCTION OF DOCUMENTS

REQUEST NO. 1. Please produce a complete and certified copy of your medical records regarding Timmi in your or your counsel's possession and/or control.

RESPONSE:

REQUEST NO. 2. Please produce a complete and certified copy of all your radiology images regarding Timmi in your or your counsel's possession and/or control.

RESPONSE:

REQUEST NO. 3. Please produce a complete and certified copy of all your medical bills, receipts, or invoices regarding Timmi's care and treatment, or lack thereof, in your or your counsel's possession.

RESPONSE:

REQUEST NO. 4. Please produce all documents and electronically stored information ("ESI") in your electronic medical records ("EMR") system regarding Timmi, regardless of whether you consider such documents and ESI to be part of what you claim are the "official" medical records for Timmi.

RESPONSE:

REQUEST NO. 5. Produce your personnel and credentialing files, including without limitation all versions of your CV from 2014 to present, all documentation of licensure, medical training, continuing medical education, disciplinary matters, counseling, and complaints against or concerning you.

RESPONSE:

REQUEST NO. 6. Produce any agreements in effect in August 2022 to present between you and other Defendants, including all contracts, employment contracts, fee sharing, and liability insurance coverage.

RESPONSE:

REQUEST NO. 7. Produce current, legible and complete *curriculum vitae* of each expert witness who may testify in the trial of this action.

RESPONSE:

REQUEST NO. 8. Produce the complete insurance policy, including without limitation the certificates of coverage, the self-insured retention, riders, amendments, and governing documents, for ANY insurance, including without limitation excess, umbrella or underlying insurance, which may provide any coverage for the claims made in this lawsuit.

RESPONSE:

REQUEST NO. 9. Produce all correspondence, notes or other memoranda or documents of any nature whatsoever, made by or in the possession or control of you or any of your employees or agents relative to this lawsuit and Plaintiffs. If any document is withheld due to a claim of privilege, produce a privilege log for that document(s).

RESPONSE:

REQUEST NO. 10. Produce the audit trails and access logs for your electronic medical records of Timmi from August 2022 to May 2024, including but not limited to: how and when they were created, who accessed the records, when they were accessed, what date and time data was entered, and whether any changes have been made to the original entries (if changes have been made, the audit trail should reflect when the changes were made, by whom, and the substance of those changes). Also, produce a key or legend to decipher any codes contained within the audit trail or identify a corporate representative whose deposition may be taken regarding this issue. ***Please produce all audit trails in their original format and in a form that can be filtered and sorted.***

RESPONSE:

REQUEST NO. 11. Produce all documents supporting or relating to any alleged defense in this case.

RESPONSE:

REQUEST NO. 12. Produce all documents, records, or other writings or tangible things relied upon, consulted, or referred to, in connection with preparing your answers and responses to the discovery requests set forth herein.

RESPONSE:

REQUEST NO. 13. Produce all documents, records, or other writings or tangible things identified in your answers to the Interrogatories set forth herein.

RESPONSE:

REQUEST NO. 14. Produce all documents relating to any incident report, occurrence report, inter-department communique, anecdotal note, investigation, and evaluation prepared concerning the care and treatment, or lack thereof, of Timmi

RESPONSE:

REQUEST NO. 15. Produce all communications by you or between you and other Defendants pertaining to Timmi.

RESPONSE:

REQUEST NO. 16. Produce all statements or recorded interviews taken or obtained regarding this matter.

RESPONSE:

REQUEST NO. 17. Produce a copy of all handwritten or typewritten notes or other memoranda or documents made by you or in your possession or control pertaining to Timmi.

RESPONSE:

/s/ Michael R. Hasken
Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
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(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiff

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, the foregoing was served via email, to the following:

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*Counsel for Defendant, Robert Aria,
M.D.*

Katherine Kerns Vesely
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Louisville, KY 40202
(502) 585-4700
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veselyk@obtlaw.com
*Counsel for Defendants, Erica Gettis,
University of Louisville Physicians, Inc.,
and UofL Health-Louisville, Inc.*

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000032 of 000084

Presiding Judge: HON. JULIE KAELIN (630451)

IRPD : 000015 of 000015

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*

CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v. **PLAINTIFF'S FIRST SET OF INTERROGATORIES AND**
REQUEST FOR PRODUCTION OF DOCUMENTS
TO DEFENDANT, ERICA GETTIS, D.O.

UofL HEALTH-LOUISVILLE, INC ET AL.

DEFENDANTS

* * * * *

Plaintiffs, by counsel, pursuant to CR 33 and 34, propound to Defendant, Erica Gettis, D.O., the first set of Interrogatories and Request for Production of Documents. Unless a shorter time for compliance is ordered by the Court, your answers to these requests are due within forty-five (45) days of the date of service hereof.

INSTRUCTIONS

These Discovery Requests shall be deemed continuing and supplemental answers and production shall be required of you pursuant to CR 26.05 if you or your counsel directly or indirectly obtain further information of the nature sought herein after the time the answers are served and the documents are produced. In complying, you should produce each document in its original form together with any

non-identical copies of the document on which any mark, alteration or additional writing or change from the original, or from another copy, has been made or affixed. All documents should be produced in their original folders, binders, or boxes, in the same order in which they are kept in the ordinary course of business and shall include labels to show their source (e.g., “from Mr. Smith’s desk”). Copies may be produced in lieu of the originals *if* complete copies are provided, including without limitation inside and outside covers, dividers, tabs and the like, *and* if the originals are simultaneously available for inspection. Accordingly, each request herein for a document covers the original, each non-identical copy, as well as the folders, etc. in which the documents were kept.

Withheld or Redacted Material

In the event any document is withheld in whole or in part, please provide a privilege log, which must specify at a minimum the date of the document, the author(s), all recipient(s), the type of document (letter, memo, e-mail, etc.), a sufficient summary description of the contents of the document to allow your claim of privilege to be determined, the claim of privilege or protection upon which it is withheld, and your complete factual basis for that claim.

In the event any document is redacted, altered, or modified, in whole or in part, please ensure that the fact of redaction is plainly stated at the place where it is made, and please provide a privilege log as described above with respect to the redacted material.

The failure to provide the privilege log, or to plainly reflect any redaction, will be claimed as a waiver of any assertion of any claimed privilege or protection from discovery, or as an intentional failure to make discovery.

Objections

If you object to any Interrogatory or Request for Production of Documents, please state the following or words of the same import: “Notwithstanding the objection, all responsive information and materials, as the case may be, are nevertheless produced.” Failing such confirmation, we will assume that responsive materials known to party(ies) or counsel have been withheld from production or from the response to Interrogatory, as the case may be and we will proceed accordingly.

DEFINITIONS

All the non-defined words used in these interrogatories and requests for production are intended as defined by standard American usage, which is as specified in a standard dictionary of the English language. Moreover, each word or term used in these written discovery requests is meant to have the broadest possible meaning permitted by the Kentucky Rules of Civil Procedure.

As used in these interrogatories and requests for production, the following specifically identified words are intended to be defined as follows:

“You” or “your” means Defendant, Erica Gettis D.O., and any of their employees, agents, subsidiaries, and/or any persons connected with, acting, or purporting to act on behalf of him.

“Person” or “persons” means and includes any natural person, corporation, partnership, joint venture, proprietorship, association, governmental or public entity, or any other form of organization or legal entity, and all their officials, officers, employees, representatives, and agents.

“Document” has the comprehensive meaning set out in CR 34 and includes all written, typed, printed, recorded or graphic statements, communications, or other matter, however produced or reproduced, and whether or not now in existence, in Your possession, custody, or control, including without limitation all electronically stored information.

As used in these written discovery requests, the singular of each word shall be construed to include its plural and vice versa; “and” and “or” shall be construed both conjunctively and disjunctively; “each” shall be construed to include “every” and vice versa; “any” shall be construed to include “all” and vice versa; and the present tense shall be construed to include the past tense and vice versa.

As used in these written discovery requests, the word “pertaining” means referring to, alluding to, responding to, connected with, commenting on, touching upon, consisting of, with respect to, about, constituent, containing, embodying, supporting, evidencing, regarding, discussing, identifying, recording, showing, describing, reflecting, relating to, or mentioning, the matter identified.

When asked to “describe” or “identify,” state at least the following:

- (a) The full name, home address, business address, employer, position and contact phone number and email address with respect to a natural person;
- (b) The full name, principal business address, phone number and email contact with respect to a corporation, partnership, or other business or government entity;
- (c) The speaker, each person who heard the communication, the substance of the communication and the time and place of the communication with respect to an oral communication;
- (d) The document’s title and a description of its subject matter, the identity of the person or persons who prepared it, the identity of the recipients, its date, and if undated, its date of preparation, and its location and custodian, with respect to a written communication; and
- (e) The date(s) and time(s) at which an event occurred, the location at which it occurred and any witnesses to it or persons present at it, with respect to an event or occasion.

* * * * *

INTERROGATORIES

INTERROGATORY NO. 1. Identify any person aiding, or in any other way contributing to, the preparation of the response to these Interrogatories and Request for Production of Documents.

ANSWER:

INTERROGATORY NO. 2. If you maintain that Plaintiffs’ injuries as described in the Complaint are attributable to the fault of any person other than you, whether in whole or in part, please identify each person to whom you attribute such fault and state specifically the facts upon which you rely in support of your position.

ANSWER:

INTERROGATORY NO. 3. If you maintain that you communicated with Timmi regarding the results of her PET scan between August 15, 2022 and May 9, 2024, please state with specificity when such communication had taken place, where that conversation had taken place, the method of communication (i.e. in-person, telephonic, or via email), and the contents of such communications.

ANSWER:

INTERROGATORY NO. 4. Identify each person known to you (including, but not limited to, your attorney) to be a witness to any of the events involved in this lawsuit, including without limitation all people who have knowledge of the facts or events of Timmi Tinker's care and treatment. For each person so identified, provide a summary of your understanding of the subject matter of that person's knowledge or claimed knowledge.

ANSWER:

INTERROGATORY NO. 5. Have you, your agents, employees, attorneys, or anyone else known to you or your agents, attorneys, or employees obtained a statement or recorded (in any form, including electronic, handwritten, notes, transcription, etc.) interview from any of the witnesses, caregivers, family members, nurses, physicians and/or experts involved in this case? If so, state the following:

- a) the name, occupation and title of the individual from whom such statement or recorded interview was obtained;
- b) The date of the statement or recorded interview;
- c) The name, address, occupation, title and phone number of the person who took such statement or made such recorded interview;
- d) The name, address, occupation, title and phone number of the person who has possession of such statement or recorded interview; and
- e) Produce all materials identified in response to this Interrogatory.

ANSWER:

INTERROGATORY NO. 6. Please state what you contend to be the amount of available liability insurance which may be applicable to *each* of the claims stated in the Complaint.

ANSWER:

INTERROGATORY NO. 7. Has any insurer notified you of any reservation of rights or other defenses as to coverage with respect to any policy which may be applicable to the claims stated in the Complaint?

ANSWER:

INTERROGATORY NO. 8. If the answer to the preceding Interrogatory is in the affirmative, please state the date upon which any such reservation(s) or defense(s) were communicated to you, describe all of the reasons offered by such insurer for such reservation or defense, and please produce all documents

pertaining thereto.

ANSWER:

INTERROGATORY NO. 9. Identify each person whom you intend to call as an expert witness at any hearing or at trial and, for each such expert, please state the following:

- a) The subject matter on which the expert is expected to testify;
- b) The substance of the facts and opinions to which the expert is expected to testify; and
- c) A summary of the grounds for each opinion of the expert.

ANSWER:

INTERROGATORY NO. 10. For each individual identified in the preceding Interrogatory, please provide;

- a) A list of all cases reviewed by said individual in the last five (5) years;
- b) For each case reviewed, please provide the case style, the state in which it was filed, identify the lawyers involved, the parties and role (e.g., plaintiff, defendant, etc.) by whom retained, the status of the matter (e.g., pending, settled, jury verdict for plaintiff, etc.), state whether a report was prepared and/or deposition was given, whether the individual appeared in court and the date of each;
- c) Identify the individual's professional liability carrier;
- d) Identify each entry on the individual's *curriculum vitae* any article(s), abstracts, treatise(s), study(ies) or any other material listed thereon which the individual believes to be relevant to this case and the individual's opinions herein; and.
- e) Produce each report and/or deposition identified above.

ANSWER:

INTERROGATORY NO. 11. State what you contend to be the legal relationship(s) between you and the other Defendants from August 2022 to May 2024, and what you contend it to be currently.

ANSWER:

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000041 of 000084

Presiding Judge: HON. JULIE KAE LIN (630451)

IRPD : 000009 of 000016

VERIFICATION

I, Erica Gettis, D.O., hereby verify the Answers contained herein are true and accurate to the best of my knowledge and belief.

Erica Gettis, D.O.

COMMONWEALTH OF KENTUCKY)

) ss:

COUNTY OF _____)

SUBSCRIBED AND SWORN to before me by Erica Gettis, D.O., on this ____ day of _____, 2025.

Notary Public, State-at-Large

My Commission Expires: _____

My Commission Number: _____

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000042 of 000084

Presiding Judge: HON. JULIE KAELIN (630451)

IRPD : 000010 of 000016

REQUEST FOR PRODUCTION OF DOCUMENTS

REQUEST NO. 1. Please produce a complete and certified copy of the medical records regarding Timmi in your or your counsel's possession.

RESPONSE:

REQUEST NO. 2. Please produce a complete and certified copy of all the radiology images regarding Timmi in your or your counsel's possession.

RESPONSE:

REQUEST NO. 3. Please produce a complete and certified copy of all your medical bills, receipts, or invoices regarding Timmi's care and treatment, or lack thereof, in your or your counsel's possession.

RESPONSE:

REQUEST NO. 4. Produce the complete insurance policy, including without limitation the certificates of coverage, the self-insured retention, riders, amendments, and governing documents, for ANY insurance, including without limitation excess, umbrella or underlying insurance, which may provide any coverage for the claims made in this lawsuit.

RESPONSE:

REQUEST NO. 5. Produce any and all documents (electronic or otherwise) that support your Answer to Interrogatory No. 3., above.

RESPONSE:

REQUEST NO. 6. Produce all documents and electronically stored information (“ESI”) in your electronic medical records (“EMR”) system regarding Timmi, regardless of whether you consider such documents and ESI to be part of what you claim are the “official” medical records for Timmi.

RESPONSE:

REQUEST NO. 7. Produce the complete Epic audit logs for Timmi’s electronic medical record from January 1, 2022 through the present, including but not limited to:

- a) User access logs identifying all individuals who accessed, reviewed, or modified her chart.
- b) Time-stamped details of any modifications, deletions, or amendments to her records.
- c) Documentation of who entered progress notes, telephone encounters, progress notes, result notes.
- d) Any instances of records being forwarded, reviewed, or signed off by medical personnel.
- e) Audit logs related to messaging functionality, particularly in-basket communications between you and other medical providers.
- f) Any indications of flagged or urgent orders that were not acted upon in a timely manner.

RESPONSE:

REQUEST NO. 8. Produce the complete picture archiving and communication system (PACS) audit log from for Timmi's electronic medical record from January 1, 2022 through the present.

RESPONSE:

REQUEST NO. 9. Produce your personnel and credentialing files, including without limitation all versions of your CV from 2014 to present, all documentation of licensure, medical training, continuing medical education, disciplinary matters, counseling, and complaints against or concerning you.

RESPONSE:

REQUEST NO. 10. Produce any agreements in effect in August 2022 to present between you and other Defendants, including all contracts, employment contracts, fee sharing, and liability insurance coverage.

RESPONSE:

REQUEST NO. 11. Produce current, legible and complete *curriculum vitae* of each expert witness who may testify in the trial of this action.

RESPONSE:

REQUEST NO. 12. Produce each document, report, paper, article,

treatise, abstract, book, textbook, statistic, literature, videotape, film or other material of any nature whatsoever, upon which you or your attorney may rely at any hearing or at the trial of this action, or upon which any of your expert witnesses will base his or her opinion or utilize in any fashion at any hearing or at the trial of this action.

RESPONSE:

REQUEST NO. 13. Produce all documents, correspondence, notes, reports (whether draft or in final form), including factual observations and opinions, and other materials which have been prepared by any such expert you intend to call at trial.

RESPONSE:

REQUEST NO. 14. Produce a copy of all handwritten or typewritten notes or other memoranda or documents made by you or in your possession or control pertaining to Timmi.

RESPONSE:

REQUEST NO. 15. For all documents, or any portion of any document, withheld under a claim of privilege in response to these Interrogatories and Request for Production of Documents, produce a privilege log setting forth the date of the document, the name and title of the preparer of the document, and identify to whom

the document was distributed, the subject matter of the document, and the basis for the claim of privilege. To the extent the claimed privilege applies to only part of a document, produce the part of the document to which the claim of privilege does not apply, clearly noting on the document the fact of redaction, and indicate the portion redacted at the place where it was made.

RESPONSE:

/s/ Michael R. Hasken

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
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Louisville, KY 40208
(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiff

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, the foregoing was served via email, in accordance with the notice of electronic service, to the following:

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*Counsel for Defendant, Robert Aria,
M.D.*

Katherine Kerns Vesely
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Louisville, KY 40202
(502) 585-4700
Facsimile (502) 585-4703
veselyk@obtlaw.com
*Counsel for Defendants, Erica Gettis,
University of Louisville Physicians, Inc.,
and UofL Health-Louisville, Inc.*

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000048 of 000084

Presiding Judge: HON. JULIE KAE LIN (630451)

IRPD : 000016 of 000016

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*

CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v. **PLAINTIFF'S FIRST SET OF INTERROGATORIES AND**
REQUEST FOR PRODUCTION OF DOCUMENTS
TO DEFENDANT UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.

UofL HEALTH-LOUISVILLE, INC ET AL.

DEFENDANTS

* * * * *

Plaintiffs, by counsel, pursuant to CR 33 and 34, propound to Defendant, University of Louisville Physicians, Inc. ("ULP"), the first set of Interrogatories and Request for Production of Documents. Unless a shorter time for compliance is ordered by the Court, your answers to these requests are due within forty-five (45) days of the date of service hereof.

INSTRUCTIONS

These Discovery Requests shall be deemed continuing and supplemental answers and production shall be required of you pursuant to CR 26.05 if you or your counsel directly or indirectly obtain further information of the nature sought herein after the time the answers are served and the documents are produced. In complying, you should produce each document in its original form together with any

non-identical copies of the document on which any mark, alteration or additional writing or change from the original, or from another copy, has been made or affixed. All documents should be produced in their original folders, binders, or boxes, in the same order in which they are kept in the ordinary course of business and shall include labels to show their source (e.g., "from Mr. Smith's desk"). Copies may be produced in lieu of the originals *if* complete copies are provided, including without limitation inside and outside covers, dividers, tabs and the like, *and* if the originals are simultaneously available for inspection. Accordingly, each request herein for a document covers the original, each non-identical copy, as well as the folders, etc. in which the documents were kept.

Withheld or Redacted Material

In the event any document is withheld in whole or in part, please provide a privilege log, which must specify at a minimum the date of the document, the author(s), all recipient(s), the type of document (letter, memo, e-mail, etc.), a sufficient summary description of the contents of the document to allow your claim of privilege to be determined, the claim of privilege or protection upon which it is withheld, and your complete factual basis for that claim.

In the event any document is redacted, altered, or modified, in whole or in part, please ensure that the fact of redaction is plainly stated at the place where it is made, and please provide a privilege log as described above with respect to the redacted material.

The failure to provide the privilege log, or to plainly reflect any redaction, will be claimed as a waiver of any assertion of any claimed privilege or protection from discovery, or as an intentional failure to make discovery, as the case may be.

Objections

In the event that you object to any Interrogatory or Request for Production of Documents, please state the following or words of the same import:

“Notwithstanding the objection, all responsive information and materials, as the case may be, are nevertheless produced.” Failing such confirmation, we will assume that responsive materials known to party(ies) or counsel have been withheld from production or from the response to Interrogatory, as the case may be and we will proceed accordingly.

DEFINITIONS

All of the non-defined words used in these interrogatories and requests for production are intended as defined by standard American usage, which is as specified in a standard dictionary of the English language. Moreover, each word or term used in these written discovery requests is meant to have the broadest possible meaning permitted by the Kentucky Rules of Civil Procedure.

As used in these interrogatories and requests for production, the following specifically-identified words are intended to be defined as follows:

“You” or “your” means Defendant and their employees, agents, subsidiaries, and/or any persons connected with, acting, or purporting to act on behalf of them, including any employees or agents of Defendant.

“Person” or “persons” means and includes any natural person, corporation, partnership, joint venture, proprietorship, association, governmental or public entity, or any other form of organization or legal entity, and all their officials, officers, employees, representatives, and agents.

“Document” has the comprehensive meaning set out in CR 34 and includes all written, typed, printed, recorded or graphic statements, communications, or other matter, however produced or reproduced, and whether or not now in existence, in Your possession, custody, or control, including without limitation all electronically-stored information.

As used in these written discovery requests, the singular of each word shall be construed to include its plural and vice versa; “and” and “or” shall be construed both conjunctively and disjunctively; “each” shall be construed to include “every” and vice versa; “any” shall be construed to include “all” and vice versa; and the present tense shall be construed to include the past tense and vice versa.

As used in these written discovery requests, the word “pertaining” means referring to, alluding to, responding to, connected with, commenting on, touching upon, consisting of, with respect to, about, constituent, containing, embodying, supporting, evidencing, regarding, discussing, identifying, recording, showing, describing, reflecting, relating to, or mentioning, the matter identified.

“Answer” is used to mean the original Answer filed in this Lawsuit.

When asked to “describe” or “identify,” state at least the following:

- (a) The full name, home address, business address, employer, position and contact phone number and email address with respect to a natural

person;

- (b) The full name, principal business address, phone number and email contact with respect to a corporation, partnership, or other business or government entity;
- (c) The speaker, each person who heard the communication, the substance of the communication and the time and place of the communication with respect to an oral communication;
- (d) The document's title and a description of its subject matter, the identity of the person or persons who prepared it, the identity of the recipients, its date, and if undated, its date of preparation, and its location and custodian, with respect to a written communication; and
- (e) The date(s) and time(s) at which an event occurred, the location at which it occurred and any witnesses to it or persons present at it, with respect to an event or occasion.

* * * * *

INTERROGATORIES

INTERROGATORY NO. 1. Identify any person aiding, or in any other way contributing to, the preparation of the response to these Interrogatories and Request for Production of Documents.

ANSWER:

INTERROGATORY NO. 2. If you maintain that the Plaintiffs' injuries as described in the Complaint are attributable to the fault of any person other than you, whether in whole or in part, please identify each person to whom you attribute such fault and state specifically the facts upon which you rely in support of your position.

ANSWER:

INTERROGATORY NO. 3. Describe in detail your understanding or contention with respect to the cause or causes of the injuries of Charles and Timmi Tinker that are the basis of the allegations in this lawsuit.

ANSWER:

INTERROGATORY NO. 4. Identify each individual known to you (including, but not limited to, your attorney) to have any knowledge or information concerning any of the events concerning Plaintiffs as described in the Complaint, including without limitation, any and all persons who have knowledge of the facts about the claims presented by Plaintiffs, or events leading up to, during, and/or following any of the events concerning Plaintiffs described in the Complaint. For each person so identified, provide a summary of your understanding of the subject matter of that person's knowledge or claimed knowledge.

ANSWER:

INTERROGATORY NO. 5. For the event described in the Complaint, please state the following:

- a) Whether it was it a sentinel event?
- b) Whether it was reportable under any regulation or standard?
- c) Whether it was an "event" for quality improvement purposes?
- d) Whether an investigation of any sort was conducted, and if so, the name, address, and title of the persons involved, the date the

investigation, report, anecdotal note, or communication was conducted or made, the substance of the same, and names, titles, job description and last known address of people interviewed.; and

- e) Please identify and produce all writings and/or documents pertaining to any of the above.

ANSWER:

INTERROGATORY NO. 6. Please state what you contend to be the amount of available liability insurance which may be applicable to *each* of the claims stated in the Complaint.

ANSWER:

INTERROGATORY NO. 7. Has any insurer notified you of any reservation of rights or other defenses as to coverage with respect to any policy which may be applicable to the claims stated in the Complaint?

ANSWER:

INTERROGATORY NO. 8. If the answer to the preceding Interrogatory is in the affirmative, please state the date upon which any such reservation(s) or defense(s) were communicated to you, describe all the reasons offered by such insurer for such reservation or defense, and please produce all documents pertaining thereto.

ANSWER:

INTERROGATORY NO. 9. Identify each person whom you intend to call as an expert witness at any hearing or at trial and, for each such expert, please state the following:

- a) The subject matter on which the expert is expected to testify;
- b) The substance of the facts and opinions to which the expert is expected to testify; and
- c) A summary of the grounds for each opinion of the expert.

ANSWER:

INTERROGATORY NO. 10. For each person whom you intend to call as an expert witness, please provide;

- a) A list of all cases reviewed by said individual in the last five (5) years;
- b) For each case reviewed, please provide the case style, the state in which it was filed, identify the lawyers involved, the parties and role (e.g., plaintiff, defendant, etc.) by whom retained, the status of the matter (e.g., pending, settled, jury verdict for plaintiff, etc.), state whether a report was prepared and/or deposition was given, whether the individual appeared in court and the date of each;
- c) Identify the individual's professional liability carrier;
- d) Identify each entry on the individual's *curriculum vitae* any article(s), abstracts, treatise(s), study(ies) or any other material listed thereon which the individual believes to be relevant to this case and the individual's opinions herein; and.
- e) Produce each report and/or deposition identified above.

ANSWER:

INTERROGATORY NO. 11. State what you contend to be the legal relationship between each Defendant as of August 2022, to May 2024, and what you contend it to be at the current time.

ANSWER:

INTERROGATORY NO. 12. State whether you participated in, or were made aware of, any peer review, quality review, root cause analysis and/or any type of internal review concerning the care and treatment or lack thereof provided to Timmi Tinker or concerns expressed by Timmi Tinker on any occasion.

ANSWER:

INTERROGATORY NO. 13. Were any incident reports or similar reports made by any of your agents or employees with regard to Timmi Tinker's medical care or lack thereof? If so, please identify each report, the person who created each report, any person that reviews the report(s), and the person having custody of each report.

ANSWER:

VERIFICATION

I, _____, hereby verify the Answers contained herein are true and accurate to the best of my knowledge and belief.

Name and Title

COMMONWEALTH OF KENTUCKY)

) ss:

COUNTY OF _____)

SUBSCRIBED AND SWORN to before me by _____,
on this ____ day of _____, 2025.

Notary Public, State-at-Large

My Commission Expires: _____

My Commission Number: _____

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000058 of 000084

Presiding Judge: HON. JULIE KAELEN (630451)

IRPD : 000010 of 000015

REQUEST FOR PRODUCTION OF DOCUMENTS

REQUEST NO. 1. Produce any documentation of your waiver of potential conflicts that may arise from your attorney representing you at the same time they represent the other Defendants in this action.

RESPONSE:

REQUEST NO. 2. Produce any joint defense or common interest agreement in this case.

RESPONSE:

REQUEST NO. 3. Produce all documents and communications relating to any investigation into the care and treatment, or lack thereof, of Timmi Tinker at any point during her time at ULH.

RESPONSE:

REQUEST NO. 4. Produce all documents of any kind relating to any investigation into the failure to diagnose and treat Timmi's cancer in August 2022 that is the subject of this litigation.

RESPONSE:

REQUEST NO. 5. Produce the complete Epic audit logs for Timmi's electronic medical record from July 1, 2022 through the present, including but not limited to:

- a) User access logs identifying all individuals who accessed, reviewed, or modified her chart.
- b) Time-stamped details of any modifications, deletions, or amendments to her records.
- c) Documentation of who entered progress notes, telephone encounters, progress notes, result notes.
- d) Any instances of records being forwarded, reviewed, or signed off by medical personnel.
- e) Audit logs related to messaging functionality, particularly in-basket communications between you and other medical providers.
- f) Any indications of flagged or urgent orders that were not acted upon in a timely manner.

RESPONSE:

REQUEST NO. 6. Produce the complete picture archiving and communication system (PACS) audit log from for Timmi's electronic medical record from January 1, 2022 through the present.

RESPONSE:

REQUEST NO. 7. Produce current, legible and complete *curriculum vitae* of each expert witness who may testify in the trial of this action. Please have the expert witness denote on the *curriculum vitae* any of the expert witness's article(s), abstracts, treatise(s), study(ies), or any other material which he or she believes to be

relevant to this Lawsuit.

RESPONSE:

REQUEST NO. 8. Produce all documents, correspondence, notes, reports (whether draft or in final form), including factual observations and opinions, and other materials which have been prepared by any such expert you intend to call at trial.

RESPONSE:

REQUEST NO. 9. Produce all insurance policies, including excess, umbrella or underlying insurance, which may provide any coverage for the claims made in the Complaint, and all face sheets, declarations pages, written amendments or interpretations of such policies, and the coverages and/or limitations of the same.

RESPONSE:

REQUEST NO. 10. Produce each document, report, paper, article, treatise, abstract, book, textbook, statistic, literature, videotape, film or other material of any nature whatsoever, upon which you or your attorney may rely at any hearing or at the trial of this action, or upon which any of your expert witnesses will base his or her opinion or utilize in any fashion at any hearing or at the trial of this action.

RESPONSE:

REQUEST NO. 11. Produce all documents supporting or relating to any alleged defense in this case.

RESPONSE:

REQUEST NO. 12. Produce all documents relating to any investigation conducted, incident report, occurrence report, inter-office communique, anecdotal note, and evaluation or verbal communication prepared concerning the care and treatment or lack thereof of Timmi Tinker.

RESPONSE:

REQUEST NO. 13. Produce any agreements or contracts effective from August 2022, to present between Defendant and any other defendant(s).

RESPONSE:

REQUEST NO. 14. Produce Dr. Gettis' personnel and credentialing files, including without limitation, all documentation of licensure, medical training, continuing medical education, disciplinary matters, counseling, and complaints against or concerning Dr. Gettis.

RESPONSE:

Respectfully submitted,

/s/ Michael R. Hasken

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
1330 South Third Street
Louisville, KY 40208
(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiff

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, the foregoing was served via email, in accordance with the notice of electronic service, to the following:

Craig L. Johnson
STEPTOE & JOHNSON PLLC
700 North Hurstbourne Parkway,
Suite 115
Louisville, KY 40222
(502) 423-2060
Facsimile (502) 423-2001
craig.johnson@steptoe-johnson.com
*Counsel for Defendant, Robert Aria,
M.D.*

Katherine Kerns Vesely
O'BRYAN, BROWN & TONER, PLLC
401 South Fourth Street, Suite 2200
Louisville, KY 40202
(502) 585-4700
Facsimile (502) 585-4703
veselyk@obtlaw.com
*Counsel for Defendants, Erica Gettis,
University of Louisville Physicians, Inc.,
and UofL Health-Louisville, Inc.*

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*

CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v. **PLAINTIFF'S FIRST SET OF INTERROGATORIES AND
REQUEST FOR PRODUCTION OF DOCUMENTS
TO DEFENDANT UofL HEALTH-LOUISVILLE, INC.**

UofL HEALTH-LOUISVILLE, INC ET AL. DEFENDANTS

* * * * *

Plaintiffs, by counsel, pursuant to CR 33 and 34, propound to Defendant, UofL Health - Louisville, Inc. ("UofL"), the following First Set of Interrogatories and Request for Production of Documents. Unless a shorter time for compliance is ordered by the Court, your answers to these requests are due within forty-five (45) days of the date of service hereof.

INSTRUCTIONS

These Discovery Requests shall be deemed continuing and supplemental answers and production shall be required of you pursuant to CR 26.05 if you or your counsel directly or indirectly obtain further information of the nature sought herein after the time the answers are served and the documents are produced. In complying, you should produce each document in its original form together with any

non-identical copies of the document on which any mark, alteration or additional writing or change from the original, or from another copy, has been made or affixed. All documents should be produced in their original folders, binders, or boxes, in the same order in which they are kept in the ordinary course of business and shall include labels to show their source (e.g., "from Mr. Smith's desk"). Copies may be produced in lieu of the originals *if* complete copies are provided, including without limitation inside and outside covers, dividers, tabs and the like, *and* if the originals are simultaneously available for inspection. Accordingly, each request herein for a document covers the original, each non-identical copy, as well as the folders, etc. in which the documents were kept.

Withheld or Redacted Material

In the event any document is withheld in whole or in part, please provide a privilege log, which must specify at a minimum the date of the document, the author(s), all recipient(s), the type of document (letter, memo, e-mail, etc.), a sufficient summary description of the contents of the document to allow your claim of privilege to be determined, the claim of privilege or protection upon which it is withheld, and your complete factual basis for that claim.

In the event any document is redacted, altered, or modified, in whole or in part, please ensure that the fact of redaction is plainly stated at the place where it is made, and please provide a privilege log as described above with respect to the redacted material.

The failure to provide the privilege log, or to plainly reflect any redaction, will be claimed as a waiver of any assertion of any claimed privilege or protection from discovery, or as an intentional failure to make discovery, as the case may be.

Objections

In the event that you object to any Interrogatory or Request for Production of Documents, please state the following or words of the same import:

“Notwithstanding the objection, all responsive information and materials, as the case may be, are nevertheless produced.” Failing such confirmation, we will assume that responsive materials known to party(ies) or counsel have been withheld from production or from the response to Interrogatory, as the case may be and we will proceed accordingly.

DEFINITIONS

All of the non-defined words used in these interrogatories and requests for production are intended as defined by standard American usage, which is as specified in a standard dictionary of the English language. Moreover, each word or term used in these written discovery requests is meant to have the broadest possible meaning permitted by the Kentucky Rules of Civil Procedure.

As used in these interrogatories and requests for production, the following specifically-identified words are intended to be defined as follows:

“You” or “your” means Defendant and their employees, agents, subsidiaries, and/or any persons connected with, acting, or purporting to act on behalf of them, including any employees or agents of Defendant.

“Person” or “persons” means and includes any natural person, corporation, partnership, joint venture, proprietorship, association, governmental or public entity, or any other form of organization or legal entity, and all their officials, officers, employees, representatives, and agents.

“Document” has the comprehensive meaning set out in CR 34 and includes all written, typed, printed, recorded or graphic statements, communications, or other matter, however produced or reproduced, and whether or not now in existence, in Your possession, custody, or control, including without limitation all electronically-stored information.

As used in these written discovery requests, the singular of each word shall be construed to include its plural and vice versa; “and” and “or” shall be construed both conjunctively and disjunctively; “each” shall be construed to include “every” and vice versa; “any” shall be construed to include “all” and vice versa; and the present tense shall be construed to include the past tense and vice versa.

As used in these written discovery requests, the word “pertaining” means referring to, alluding to, responding to, connected with, commenting on, touching upon, consisting of, with respect to, about, constituent, containing, embodying, supporting, evidencing, regarding, discussing, identifying, recording, showing, describing, reflecting, relating to, or mentioning, the matter identified.

“Answer” is used to mean the original Answer filed in this Lawsuit.

When asked to “describe” or “identify,” state at least the following:

- (a) The full name, home address, business address, employer, position and contact phone number and email address with respect to a natural

person;

- (b) The full name, principal business address, phone number and email contact with respect to a corporation, partnership, or other business or government entity;
- (c) The speaker, each person who heard the communication, the substance of the communication and the time and place of the communication with respect to an oral communication;
- (d) The document's title and a description of its subject matter, the identity of the person or persons who prepared it, the identity of the recipients, its date, and if undated, its date of preparation, and its location and custodian, with respect to a written communication; and
- (e) The date(s) and time(s) at which an event occurred, the location at which it occurred and any witnesses to it or persons present at it, with respect to an event or occasion.

* * * * *

INTERROGATORIES

INTERROGATORY NO. 1. Identify any person aiding, or in any other way contributing to, the preparation of the response to these Interrogatories and Request for Production of Documents.

ANSWER:

INTERROGATORY NO. 2. If you maintain that the Plaintiffs' injuries as described in the Complaint are attributable to the fault of any person other than you, whether in whole or in part, please identify each person to whom you attribute such fault and state specifically the facts upon which you rely in support of your position.

ANSWER:

INTERROGATORY NO. 3. Describe in detail your understanding or contention with respect to the cause or causes of the injuries of Charles and Timmi Tinker that are the basis of the allegations in this lawsuit.

ANSWER:

INTERROGATORY NO. 4. Identify each individual known to you (including, but not limited to, your attorney) to have any knowledge or information concerning any of the events concerning Plaintiffs as described in the Complaint, including without limitation, any and all persons who have knowledge of the facts about the claims presented by Plaintiffs, or events leading up to, during, and/or following any of the events concerning Plaintiffs described in the Complaint. For each person so identified, provide a summary of your understanding of the subject matter of that person's knowledge or claimed knowledge.

ANSWER:

INTERROGATORY NO. 5. For the event described in the Complaint, please state the following:

- a) Whether it was it a sentinel event?
- b) Whether it was reportable under any regulation or standard?
- c) Whether it was an "event" for quality improvement purposes?
- d) Whether an investigation of any sort was conducted, and if so, the name, address, and title of the persons involved, the date the

investigation, report, anecdotal note, or communication was conducted or made, the substance of the same, and names, titles, job description and last known address of people interviewed.; and

- e) Please identify and produce all writings and/or documents pertaining to any of the above.

ANSWER:

INTERROGATORY NO. 6. Please state what you contend to be the amount of available liability insurance which may be applicable to *each* of the claims stated in the Complaint.

ANSWER:

INTERROGATORY NO. 7. Has any insurer notified you of any reservation of rights or other defenses as to coverage with respect to any policy which may be applicable to the claims stated in the Complaint?

ANSWER:

INTERROGATORY NO. 8. If the answer to the preceding Interrogatory is in the affirmative, please state the date upon which any such reservation(s) or defense(s) were communicated to you, describe all the reasons offered by such insurer for such reservation or defense, and please produce all documents pertaining thereto.

ANSWER:

INTERROGATORY NO. 9. Identify each person whom you intend to call as an expert witness at any hearing or at trial and, for each such expert, please state the following:

- a) The subject matter on which the expert is expected to testify;
- b) The substance of the facts and opinions to which the expert is expected to testify; and
- c) A summary of the grounds for each opinion of the expert.

ANSWER:

INTERROGATORY NO. 10. For each person whom you intend to call as an expert witness, please provide;

- a) A list of all cases reviewed by said individual in the last five (5) years;
- b) For each case reviewed, please provide the case style, the state in which it was filed, identify the lawyers involved, the parties and role (e.g., plaintiff, defendant, etc.) by whom retained, the status of the matter (e.g., pending, settled, jury verdict for plaintiff, etc.), state whether a report was prepared and/or deposition was given, whether the individual appeared in court and the date of each;
- c) Identify the individual's professional liability carrier;
- d) Identify each entry on the individual's *curriculum vitae* any article(s), abstracts, treatise(s), study(ies) or any other material listed thereon which the individual believes to be relevant to this case and the individual's opinions herein; and.
- e) Produce each report and/or deposition identified above.

ANSWER:

INTERROGATORY NO. 11. State what you contend to be the legal relationship between each Defendant as of August 2022, to May 2024, and what you contend it to be at the current time.

ANSWER:

INTERROGATORY NO. 12. State whether you participated in, or were made aware of, any peer review, quality review, root cause analysis and/or any type of internal review concerning the care and treatment or lack thereof provided to Timmi Tinker or concerns expressed by Timmi Tinker on any occasion.

ANSWER:

INTERROGATORY NO. 13. Were any incident reports or similar reports made by any of your agents or employees with regard to Timmi Tinker's medical care or lack thereof? If so, please identify each report, the person who created each report, any person that reviews the report(s), and the person having custody of each report.

ANSWER:

VERIFICATION

I, _____, hereby verify the Answers contained herein are true and accurate to the best of my knowledge and belief.

Name and Title

COMMONWEALTH OF KENTUCKY)

) ss:

COUNTY OF _____)

SUBSCRIBED AND SWORN to before me by _____,
on this ____ day of _____, 2025.

Notary Public, State-at-Large

My Commission Expires: _____

My Commission Number: _____

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000073 of 000084

Presiding Judge: HON. JULIE KAELEN (630451)

IRPD : 000010 of 000016

REQUEST FOR PRODUCTION OF DOCUMENTS

REQUEST NO. 1. Produce any documentation of your waiver of potential conflicts that may arise from your attorney representing you at the same time they represent the other Defendants in this action.

RESPONSE:

REQUEST NO. 2. Produce any joint defense or common interest agreement in this case.

RESPONSE:

REQUEST NO. 3. Produce Timmi's complete medical records, including all audit trails, metadata, disclosure logs, and all other electronically stored information pertinent to Timmi's care or lack thereof.

RESPONSE:

REQUEST NO. 4. Produce all documents of any kind relating to any investigation into the failure to diagnose and treat Timmi's cancer in August 2022 that is the subject of this litigation.

RESPONSE:

REQUEST NO. 5. Produce the complete Epic audit logs for Timmi's electronic medical record from July 1, 2022 through the present, including but not limited to:

- a) User access logs identifying all individuals who accessed, reviewed, or modified her chart.
- b) Time-stamped details of any modifications, deletions, or amendments to her records.
- c) Documentation of who entered progress notes, telephone encounters, progress notes, result notes.
- d) Any instances of records being forwarded, reviewed, or signed off by medical personnel.
- e) Audit logs related to messaging functionality, particularly in-basket communications between you and other medical providers.
- f) Any indications of flagged or urgent orders that were not acted upon in a timely manner.

RESPONSE:

REQUEST NO. 6. Produce the complete picture archiving and communication system (PACS) audit log from for Timmi's electronic medical record from January 1, 2022 through the present.

RESPONSE:

REQUEST NO. 7. Produce current, legible and complete *curriculum vitae* of each expert witness who may testify in the trial of this action. Please have the expert witness denote on the *curriculum vitae* any of the expert witness's article(s), abstracts, treatise(s), study(ies), or any other material which he or she

believes to be relevant to this Lawsuit.

RESPONSE:

REQUEST NO. 8. Produce all documents, correspondence, notes, reports (whether draft or in final form), including factual observations and opinions, and other materials which have been prepared by any such expert you intend to call at trial.

RESPONSE:

REQUEST NO. 9. Produce all insurance policies, including excess, umbrella or underlying insurance, which may provide any coverage for the claims made in the Complaint, and all face sheets, declarations pages, written amendments or interpretations of such policies, and the coverages and/or limitations of the same.

RESPONSE:

REQUEST NO. 10. Produce each document, report, paper, article, treatise, abstract, book, textbook, statistic, literature, videotape, film or other material of any nature whatsoever, upon which you or your attorney may rely at any hearing or at the trial of this action, or upon which any of your expert witnesses will base his or her opinion or utilize in any fashion at any hearing or at the trial of this action.

RESPONSE:

REQUEST NO. 11. Produce all documents supporting or relating to any alleged defense in this case.

RESPONSE:

REQUEST NO. 12. Produce all documents relating to any investigation conducted, incident report, occurrence report, inter-office communique, anecdotal note, and evaluation or verbal communication prepared concerning the care and treatment or lack thereof of Timmi Tinker.

RESPONSE:

REQUEST NO. 13. Produce an organizational chart for Defendants UofL Health as of August 15, 2022.

RESPONSE:

REQUEST NO. 14. Produce any agreements or contracts effective from August 2022, to present between Defendant and any other defendant(s).

RESPONSE:

REQUEST NO. 15. Produce Dr. Gettis' personnel and credentialing files, including without limitation, all documentation of licensure, medical training,

continuing medical education, disciplinary matters, counseling, and complaints against or concerning Dr. Gettis.

RESPONSE:

REQUEST NO. 16. Produce in original digital format all radiology studies of Timmi Tinker in Defendant's possession from 2021 to the present.

RESPONSE:

Respectfully submitted,

/s/ Michael R. Hasken

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
1330 South Third Street
Louisville, KY 40208
(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiff

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, the foregoing was served via email, in accordance with the notice of electronic service, to the following:

Craig L. Johnson
STEPTOE & JOHNSON PLLC
700 North Hurstbourne Parkway,
Suite 115
Louisville, KY 40222
(502) 423-2060
Facsimile (502) 423-2001
craig.johnson@steptoe-johnson.com
*Counsel for Defendant, Robert Aria,
M.D.*

Katherine Kerns Vesely
O'BRYAN, BROWN & TONER, PLLC
401 South Fourth Street, Suite 2200
Louisville, KY 40202
(502) 585-4700
Facsimile (502) 585-4703
veselyk@obtlaw.com
*Counsel for Defendants, Erica Gettis,
University of Louisville Physicians, Inc.,
and UofL Health-Louisville, Inc.*

92916BC6-EC5C-4EF8-A900-6502BA9F8E3D : 000079 of 000084

Presiding Judge: HON. JULIE KAE LIN (630451)

IRPD : 000016 of 000016



CIVIL SUMMONS

Case #: **25-CI-002964**

Court: **CIRCUIT**

County: **JEFFERSON Circuit**

Plaintiff, TINKER, CHARLES ET AL VS. UOFL HEALTH-LOUISVILLE, INC. ET AL, Defendant

TO: ERICA GETTIS
2401 TERRA CROSSING BLVD
LOUISVILLE, KY 40245

The Commonwealth of Kentucky to Defendant:

You are hereby notified that a **legal action has been filed against you** in this Court demanding relief as shown on the document delivered to you with this Summons. **Unless a written defense is made by you or by an attorney on your behalf within twenty (20) days** following the day this paper is delivered to you, judgment by default may be taken against you for the relief demanded in the attached complaint.

The name(s) and address(es) of the party or parties demanding relief against you or his/her (their) attorney(s) are shown on the document delivered to you with this Summons.

Jefferson Circuit Clerk

Date: **4/16/2025**

Proof of Service

This Summons was:

☐ Served by delivering a true copy and the Complaint (or other initiating document)

To: _____

☐ Not Served because: _____

Date: _____, 20____

Served By

Title





CIVIL SUMMONS

Case #: **25-CI-002964**

Court: **CIRCUIT**

County: **JEFFERSON Circuit**

Plaintiff, TINKER, CHARLES ET AL VS. UOFL HEALTH-LOUISVILLE, INC. ET AL, Defendant

TO: ROBERT ARIA
1850 BLUEGRASS AVENUE
LOUISVILLE, KY 40215

The Commonwealth of Kentucky to Defendant:

You are hereby notified that a **legal action has been filed against you** in this Court demanding relief as shown on the document delivered to you with this Summons. **Unless a written defense is made by you or by an attorney on your behalf within twenty (20) days** following the day this paper is delivered to you, judgment by default may be taken against you for the relief demanded in the attached complaint.

The name(s) and address(es) of the party or parties demanding relief against you or his/her (their) attorney(s) are shown on the document delivered to you with this Summons.

Jefferson Circuit Clerk

Date: **4/16/2025**

Proof of Service

This Summons was:

☐ Served by delivering a true copy and the Complaint (or other initiating document)

To: _____

☐ Not Served because: _____

Date: _____, 20____

Served By

Title

Summons ID: @00001100943

CIRCUIT: 25-CI-002964 Certified Mail

TINKER, CHARLES ET AL VS. UOFL HEALTH-LOUISVILLE, INC. ET AL





CIVIL SUMMONS

Case #: 25-CI-002964

Court: CIRCUIT

County: JEFFERSON Circuit

Plaintiff, TINKER, CHARLES ET AL VS. UOFL HEALTH-LOUISVILLE, INC. ET AL, Defendant

TO: JAMES RAYOME
530 SOUTH JACKSON STREET
LOUISVILLE, KY 40202

Memo: Related party is UOFL HEALTH-LOUISVILLE, INC.

The Commonwealth of Kentucky to Defendant:
UOFL HEALTH-LOUISVILLE, INC.

You are hereby notified that a **legal action has been filed against you** in this Court demanding relief as shown on the document delivered to you with this Summons. **Unless a written defense is made by you or by an attorney on your behalf within twenty (20) days** following the day this paper is delivered to you, judgment by default may be taken against you for the relief demanded in the attached complaint.

The name(s) and address(es) of the party or parties demanding relief against you or his/her (their) attorney(s) are shown on the document delivered to you with this Summons.

Davis L. Nicholson

Jefferson Circuit Clerk

Date: 4/16/2025

Proof of Service

This Summons was:

☐ Served by delivering a true copy and the Complaint (or other initiating document)

To: _____

☐ Not Served because: _____

Date: _____, 20____

Served By

Title





CIVIL SUMMONS

Case #: 25-CI-002964

Court: CIRCUIT

County: JEFFERSON Circuit

Plaintiff, TINKER, CHARLES ET AL VS. UOFL HEALTH-LOUISVILLE, INC. ET AL, Defendant

TO: JAMES RAYOME
530 SOUTH JACKSON STREET
LOUISVILLE, KY 40202

Memo: Related party is UNIVERSITY OF LOUISVILLE PHYSICIANS, INC

The Commonwealth of Kentucky to Defendant:
UNIVERSITY OF LOUISVILLE PHYSICIANS, INC

You are hereby notified that a **legal action has been filed against you** in this Court demanding relief as shown on the document delivered to you with this Summons. **Unless a written defense is made by you or by an attorney on your behalf within twenty (20) days** following the day this paper is delivered to you, judgment by default may be taken against you for the relief demanded in the attached complaint.

The name(s) and address(es) of the party or parties demanding relief against you or his/her (their) attorney(s) are shown on the document delivered to you with this Summons.

Davis L. Nicholas

Jefferson Circuit Clerk

Date: 4/16/2025

Proof of Service

This Summons was:

☐ Served by delivering a true copy and the Complaint (or other initiating document)

To: _____

☐ Not Served because: _____

Date: _____, 20____

Served By

Title





Commonwealth of Kentucky
David L. Nicholson, Jefferson Circuit Clerk

Case #: 25-CI-002964

Envelope #: 10369458

Received From: ANN OLDFATHER

Account Of: ANN OLDFATHER

Case Title: TINKER, CHARLES ET AL VS. UOFL
HEALTH-LOUISVILLE, INC. ET AL
Filed On 4/16/2025 4:59:51 PM

Confirmation Number: 200145588

#	Item Description	Amount
1	Access To Justice Fee	\$20.00
2	Money Collected For Others(Court Tech. Fee)	\$20.00
3	Money Collected For Others(Postage)	\$106.80
4	Money Collected For Others(Attorney Tax Fee)	\$5.00
5	Library Fee	\$3.00
6	Civil Filing Fee	\$150.00
7	Charges For Services(Copy - Photocopy)	\$32.40
8	Charges For Services(Jury Demand / 12)	\$70.00
TOTAL:		\$407.20